

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Valentina Concha-Toro	Team: Squad #12	CCRB Case #: 201900040	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/23/2018 11:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/7/2021	Precinct: 120		
Date/Time CV Reported Thu, 12/20/2018 4:44 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/20/2018 4:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Amir Pali	06817	961060	120 PCT
2. POM Salvatore Balistreri	10442	960199	120 PCT
3. POM Christian Pinez	08445	957958	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Patrick Antosiewicz	10976	964375	120 PCT
2. POM Joseph Colao	18275	958417	120 PCT
3. POF Michele Romeo	13976	961200	120 PCT
4. POM Jihad Shahin	10451	956256	120 PCT
5. POM Joseph Russo	20327	965489	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christian Pinez	Abuse: Police Officer Christian Pinez threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Salvatore Balistreri	Abuse: Police Officer Salvatore Balistreri threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Amir Pali	Abuse: Police Officer Amir Pali threatened to arrest § 87(2)(b)	C . Exonerated

Case Summary

On December 20, 2018, § 87(2)(b) submitted this complaint via the telephone with the CCRB.

At approximately 11:00 p.m. on November 23, 2018, § 87(2)(b) was at § 87(2)(b) in Staten Island with her friend, § 87(2)(b) who resided on the first floor of the residence. § 87(2)(b)'s son, known to the investigation only as § 87(2)(b) arrived at the location and became involved in a dispute with § 87(2)(b). Police Officers Christian Pinez, Salvatore Balistreri, and Amir Pali of the 120th Precinct responded to the location told § 87(2)(b) if she did not leave she would be arrested (**Allegation A, B and C: Abuse of Authority – Threat of Arrest, Exonerated**) Police Officer Balistreri told § 87(2)(b) she would be arrested if she were to press charges (**Allegation subsumed in allegation B: Abuse of Authority – Threat of Arrest**). No arrests or summonses resulted from this incident.

§ 87(2)(b) provided the investigation with three videos recorded on her cellphone during the incident, but none captured any misconduct (Board Reviews 01-03). The investigation obtained 12 body-worn camera videos from the incident, but none captured any misconduct (Board Reviews 04-15).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christian Pinez threatened to arrest

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Salvatore Balistreri threatened to arrest

§ 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Amir Pali threatened to arrest

§ 87(2)(b)

It is undisputed that on November 23, 2018, two calls were made for an ambulance to respond to § 87(2)(b) for § 87(2)(b). The emergency medical technicians (EMTs) on scene determined that § 87(2)(b) needed to be removed to the hospital. It is also undisputed that § 87(2)(b)'s sister resided at § 87(2)(b) and that § 87(2)(b) did not reside on the property.

§ 87(2)(b) was interviewed at the CCRB on January 2, 2019 (Board Review 16), and she provided a telephone statement on December 20, 2019 (Board Review 17), § 87(2)(g)

During § 87(2)(b)'s CCRB interview she stated that Police Officer Pinez told § 87(2)(b) that § 87(2)(b) was not capable of making the determination of whether § 87(2)(b) could stay in the residence. Police Officer Pinez told § 87(2)(b) she needed to leave or else she would be arrested for trespassing. Police Officers Balistreri and Pali told § 87(2)(b) she would be arrested if she did not leave. § 87(2)(b) told Police Officer Balistreri she had been assaulted

by § 87(2)(b) and the female EMT had witnessed the assault. § 87(2)(b) told Police Officer Balistreri she wanted to press charges and Police Officer Balistreri told her the situation did not look good for her. Police Officer Balistreri told § 87(2)(b) if she were to press charges she would be arrested for assault.

During Police Officer Balistreri's CCRB interview on June 5, 2019 (Board Review 18), and Police Officer Pali's CCRB interview on June 6, 2019 (Board Review 19), they both stated that § 87(2)(b)'s sister, who identified herself as the owner of the property, had said she did not want § 87(2)(b) in the residence. Police Officers Balistreri and Pali discussed § 87(2)(b)'s stay in the residence and determined because § 87(2)(b) did not reside at the location and because the property owner did not want § 87(2)(b) in the residence, § 87(2)(b) could not stay. Police Officer Balistreri told § 87(2)(b) she needed to leave the residence. Police Officer Balistreri testified he had a conversation with § 87(2)(b) about her staying but did not recall what was said and Police Officer Pali testified during this conversation § 87(2)(b) told Police Officer Balistreri she did not want to leave. Both Police Officers Balistreri and Pali testified that Police Officer Balistreri informed § 87(2)(b) that if she did not leave she would be arrested for trespassing, but no other officer threatened her with arrest.

Police Officers Balistreri and Pali did not recall having a conversation with § 87(2)(b) regarding pressing charges against § 87(2)(b) nor were they aware any other officer on scene having this discussion with § 87(2)(b). Police Officers Balistreri and Pali denied threatening § 87(2)(b) with arrest regarding an assault and did not recall any other officer having done so.

During Police Officer Pinez's CCRB interview on February 6, 2019 (Board Review 20), he denied threatening § 87(2)(b) with arrest for trespassing or any other officer doing so. Police Officer Pinez denied he threatened § 87(2)(b) with arrest for pressing charges or any other officer having done so.

According to NYS Penal Law, Section 140.00 and 140.05 (Board Review 21), a person is guilty of trespassing when they knowingly "remains unlawfully" in or upon premises. To "remain unlawfully" is to remain upon a premise when not privileged to do so by ownership or defies a lawful order not to remain.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) it is recommended that **Allegations A, B and C** be **Exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 22).
- Police Officer Pinez has been a member-of-service for four years and has been the subject of one prior CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g).
- Police Officer Balistreri has been a member-of-service for three years and has been the subject of one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g).
- Police Officer Pali has been a member-of-service for three years and has no prior CCRB complaints.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- The New York City Comptroller's Office stated that as of June 14, 2019, no Notice of Claim has been filed in regards to this incident (Board Review 25).

Squad No. 12

Investigator:	Signature	Print Title & Name	Date
Squad Leader:	Signature	Print Title & Name	Date
Reviewer:	Signature	Print Title & Name	Date